

HOUSE No. 5054

The Commonwealth of Massachusetts

PRESENTED BY:

Thomas P. Walsh and Joan B. Lovely

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the maintenance of pre-employment physical examination records for public safety personnel in the city of Peabody.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Thomas P. Walsh</i>	<i>12th Essex</i>	<i>1/28/2026</i>
<i>Sally P. Kerans</i>	<i>13th Essex</i>	<i>2/12/2026</i>

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By Representative Walsh of Peabody and Senator Lovely, a joint petition (accompanied by bill, House, No. 5054) of Thomas P. Walsh (with the approval of the mayor and city council) relative to the maintenance of pre-employment physical examination records for public safety personnel in the city of Peabody. Public Service. [Local Approval Received.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the maintenance of pre-employment physical examination records for public safety personnel in the city of Peabody.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1: Notwithstanding any general or special law to the contrary, the City of
2 Peabody Retirement Board shall apply the presumptions afforded by Section 94, 94A and 94B of
3 Chapter 32 of General Laws, as follows to certain public safety personnel in the City of Peabody
4 who apply for Accidental Disability Retirement pursuant to Section 7 of said Chapter 32.

5 SECTION 2. If the member's employer cannot locate or otherwise failed to maintain a
6 complete record of the member's physical examination into service, the member or employer
7 may submit an Affidavit attesting that the member did undergo an examination and that the
8 examination failed to reveal any evidence of the disabling condition for which the member is
9 seeking Accidental Disability Retirement. This Affidavit shall constitute substantial evidence
10 that the member successfully underwent a pre-employment physical examination as required by
11 Sections 94, 94A and 94B.